

Official Information Act Request

Requester's details

Date: 23 May 2025

Name: Rob Enright

Organisation: Magdalane Chambers

Email: rob@publiclaw9.com

Reference number: ENQ-49347-G8M2B5

Tēnā koe Rob

I refer to your request received on 28 April 2025:

that the EPA:(a) confirm that the EPA has systems and processes in place to comply with its obligation under s 93 of the FTAA (and the wider Act) in respect of substantive applications, as soon as lodged with the EPA

I can confirm that the Environmental Protection Authority (EPA) has systems and processes in place to comply with its obligations under the Fast Track Approvals Act 2024.

As you are aware the EPA had taken a position that the Fast Track Approvals Act 2024 does not require the publication of incomplete applications. Following your correspondence we have reviewed our position, and agree that, on balance, the documents you have listed must be published by the EPA.

On the question of timing, there is no specific timeframe in the Act for publication. The Act does contain a positive duty to act promptly where no time limit has been set and establishes a duty for the EPA to avoid delay as far as reasonably practicable. I note this involves a balancing exercise between the benefits of acting promptly and resource and time constraints faced by those who undertake the necessary steps to prepare the documents for publication.

I hope this information is helpful. You have the right to seek an investigation and review by the Ombudsman of this decision under section 28(3) of the OIA. You can contact the Ombudsman on 0800 802 602, or by email at info@ombudsman.parliament.nz

If you have any further queries, please do not hesitate to contact us via oia@fasttrack.govt.nz. We may publish your request and our response on our website, www.fasttrack.govt.nz We make OIA responses available so others can read more about the work we do and the questions we are asked. Any information that might identify you will be removed to protect your privacy.

Nāku noa nā



Michelle Ward

General Manager, Climate, Land and Oceans